THE INTERNET I'D grown up with, the Internet that had raised me, was disappearing. And with it, so was my youth. The very act of going online, which had once seemed like a marvelous adventure, now seemed like a fraught ordeal. Self-expression now required such strong self-protection as to obviate its liberties and nullify its pleasures. Every communication was a matter not of creativity but of safety. Every transaction was a potential danger.

Meanwhile, the private sector was busy leveraging our reliance on technology into market consolidation. The majority of American Internet users lived their entire digital lives on email, social media, and e-commerce platforms owned by an imperial triumvirate of companies (Google, Facebook, and Amazon), and the American IC was seeking to take advantage of that fact by obtaining access to their networks—both through direct orders that were kept secret from the public, and clandestine subversion efforts that were kept secret from the companies themselves. Our user data was turning vast profits for the companies, and the government pilfered it for free. I don't think I'd ever felt so powerless.

Then there was this other emotion that I felt, a curious sense of being adrift and yet, at the same time, of having my privacy violated. It was as if I were dispersed—with parts of my life scattered across servers all over the globe—and yet intruded or imposed upon. Every morning when I left our town house, I found myself nodding at the security cameras dotted throughout our development. Previously I'd never paid them any attention, but now, when a light turned red on my commute, I couldn't help but think of its leering sensor, keeping tabs on me whether I blew through the intersection or stopped. License-plate readers were recording my comings and goings, even if I maintained a speed of 35 miles per hour.

America's fundamental laws exist to make the job of law enforcement not easier but harder. This isn't a bug, it's a core feature of democracy. In the American system, law enforcement is expected to protect citizens from one another. In turn, the courts are expected to restrain that power when it's abused, and to provide redress against the only members of society with the domestic authority to detain, arrest, and use force—including lethal force. Among the most important of these restraints are the prohibitions against law enforcement surveilling private citizens on their property and taking possession of their private recordings without a warrant. There are few laws, however, that restrain the surveillance of public property, which includes the vast majority of America's streets and sidewalks.